Alabama Rules of Criminal Procedure

Rule 32. Post-conviction remedies.

Rule 32.10. Appeal.

(a) WHO MAY APPEAL; COURT TO WHICH APPEAL IS TAKEN. Any party may appeal the decision of a circuit court according to the procedures of the Alabama Rules of Appellate Procedure to the Court of Criminal Appeals upon taking a timely appeal as provided in Rule 4, Alabama Rules of Appellate Procedure. Any party may appeal a decision of a district or municipal court according to existing procedure.

(b) RELEASE OF PETITIONER. The petitioner shall not be released on bond pending appeal by either party. Release of the petitioner on bond pending a retrial after an order requiring retrial has become final, or after the time for filing an appeal from such an order has lapsed, shall be governed by the laws and rules governing release on bond pending an initial trial.